



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

October 19, 2022

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 7573
(TWENTY-SECOND REVISION)

EXPIRATION DATE: 2026-09-30

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Department of Defense (Military Surface
Deployment & Distribution Command)
Scott AFB, IL
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of hazardous materials by cargo-only aircraft as authorized by paragraph 8.a. in conformance with AFMAN 24-604 and the Defense Transportation Regulations (DTR). This special permit provides no relief from the Hazardous Materials Regulations (HMR) or the International Civil Aviation Organization's Technical Instructions for the Safe Transport of Dangerous Goods by Air (ICAO TI) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
 - d. This special permit serves as an "exemption" as defined in 1;3.1.1 of ICAO TI and as a "Competent Authority Approval" as defined in 49 CFR 107.1.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180 and the ICAO TI.

Tracking Number: 2022074496

4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Parts 172 and 175, except as specified herein.
5. BASIS: This special permit is based on Department of Defense's (Military Surface Deployment & Distribution Command) application dated July 7, 2022, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Military explosives and ammunition/as appropriate per AFMAN 24-604 Table 4.1	1.1, 1.2, 1.3, 1.4 and 1.5, as appropriate	As appropriate	As appropriate
Other hazardous materials/as appropriate per AFMAN 24-604 Table 4.1	As appropriate	As appropriate	As appropriate

7. SAFETY CONTROL MEASURES:
- a. Authorized Hazardous Materials: Hazardous materials authorized by this special permit are those certified to AFMAN 24-604.
- b. Authorized Airports:
- (1) Military bases and civil airports, subject to pre-approval. The Department of Defense (DOD) and/or contracted carrier must have advance permission from the owner or operator of civil airports being used where the material is to be loaded or unloaded or where the aircraft is to land while the material is on-board. The DOD will notify the Office of Hazardous Materials Safety (OHMS) or other designated agency of airfields used under the special permit.
- (2) When the destination is changed after departure because of weather or other unforeseen circumstances, permission from the owner, or operator of the alternate airport, must be obtained as soon as possible.

c. Loading and Stowage of Materials:

(1) Cargo packaging, offering, loading, and stowage of military explosives (including ammunition) and other hazardous materials aboard aircraft must be in accordance with procedures specified in Air Force Regulation AFMAN 24-604. All loading and unloading operations under this special permit must be monitored by a qualified DOD representative or a technician qualified in accordance with 14 CFR 121.1005 or to ensure compliance with the prescribed procedures in accordance with AFMAN 24-604 / TM 38-250 / NAVSUP PUB 505 / MCO P4030.19J / DLA I 4145.3 / PREPARING HAZARDOUS MATERIALS FOR MILITARY AIR SHIPMENTS.

(2) During loading and unloading, no person may smoke or carry a lighted cigarette, cigar, pipe or electronic cigarette, or operate any device capable of causing an open flame within 50 feet of the aircraft.

(3) Unless emergency conditions prescribe otherwise, the loading and unloading of the aircraft must be conducted at a safe distance from heavily populated areas and from any place of human abode or assembly. However, at an airport where the airport owner, operator or authorized representative thereof has designated a specific location for loading or unloading, explosives may not be loaded or unloaded at any other location.

d. Operational Requirements:

(1) Operation of the aircraft during take-off, enroute and landing must be conducted at a safe distance from heavily populated areas.

(i) Before movement of the aircraft prior to take-off, the pilot of the aircraft or a contracted DOD carrier representative must notify the control tower of the class(es) of explosives(s) (including ammunition) on board.

(ii) When under radar control during the approach and landing phase, the pilot (or authorized representative) must request appropriate vectors to avoid heavily populated areas.

(iii) When under radar control during the approach and landing phase, the pilot must request appropriate vectors to avoid heavily populated areas.

(2) No persons other than required flight crew members and mission essential personnel may be carried on the aircraft. Prior to take-off, all crew members must be instructed in proper procedures to be followed during an emergency involving hazardous materials.

(3) No fueling operations of the aircraft may be conducted during the loading and unloading of explosives.

(4) Fuel tanks of vehicles and self-propelled equipment must not exceed 50% of their capacity. Equipment (other than self-propelled) must be drained to the maximum extent possible.

8. SPECIAL PROVISIONS:

a. This special permit applies only to transportation in air commerce of explosives and other hazardous materials deemed essential to national defense via DOD contract airlift services and civil air operators under contract to the Air Mobility Command (AMC).

b. The aircraft used must be those contract airlift services and civil air operators under contract to AMC. The DOD must maintain on file with the OHMS, an up-to-date list naming each carrier used under this special permit.

c. When requested by OHMS, the DOD must obtain and provide to OHMS a copy of the manual required by 14 CFR 121.133(a) from each air carrier used under this special permit.

d. Except as otherwise stated in this special permit, the following regulations do not apply to operations performed in conformance with this special permit: 49 CFR Parts 172 and 175.

e. Shipping papers (including the certifications required by § 172.204 as implemented by AFMAN 24-604) are required for all hazardous material carried under this special permit.

f. This special permit authorizes transportation of hazardous materials in aircraft of United States registry in domestic and international air commerce.

g. Shipments must be inspected by DOD personnel in accordance with AFMAN 24-604, the ICAO TI, the HMR and the DTR. Contracted carriers can authorize this to be performed on their behalf by DOD personnel.

h. This special permit in no way affects the need to obtain any required authorizations from other agencies of the United States Government or from the competent authorities of the States of origin, transit, over flight, and destination of the consignment, as well as the State of the air operator.

9. MODES OF TRANSPORTATION AUTHORIZED: Cargo-only aircraft.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each aircraft used to transport packages covered by this special permit. The shipper shall furnish a current copy of this special permit to the air carrier before or at the time the shipment is tendered.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601. et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8 who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit. DOD personnel must be hazardous materials trained in accordance with AFMAN 24-604 and the Defense Transportation Regulation.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- “The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this

special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "Dan B.", is written over a faint, circular official stamp.

for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: TG